

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
FAMILY LAW DIVISION

IN RE: The Marriage of:

CASE NO.: 24-DR-001150

SARAH HANSON,

DIVISION: D

Petitioner,

and

CHRISTOPHER HANSON,

Respondent.

_____ /

**ORDER ON HUSBAND/RESPONDENT'S MOTION TO VACATE, FOR
REHEARING AND IN THE ALTERNATIVE FORMAL WRITTEN
ORDER IN PLACE OF 2-6-25 ORDER DENYING MOTION TO
DISQUALIFY JUDGE AYERS WITHOUT IDENTIFYING THE
INSUFFICIENCY OR GROUNDS FOR DENIAL**

1. This matter came before the Court for consideration without hearing on the Husband/Respondent's Motion to Vacate, for Rehearing and in the Alternative Formal Written Order in Place of 2-6-25 Order Denying Motion to Disqualify Judge Ayers Without Identifying the Insufficiency or Grounds for Denial seeking to vacate Order Denying Husband/Respondent's Verified Motion to Disqualify Judge Ayers, reviewed by the Court on February 14, 2025, in accordance with Florida Family Law Rule of Procedure 12.100.
2. In accordance with Florida Rule of Judicial Administration 2.330 and Section 38.10 of the Florida Statutes, on motions to disqualify, the Court is not permitted to deny the allegations, reject them as unfounded, or comment upon them at all. To do so establishes an independent grounds for disqualification. *Bundy v. Rudd*, 366 So. 2d 440, 442 (Fla. 1978).
3. Even when the allegations are untrue, incomplete, or misleading, judges should not try to defend their honor or reputation when reviewing and ruling upon motions for disqualification. *Hill v. Feder*, 564 So. 2d 609 (Fla. 3d DCA 1990).
4. Therefore, as required by law, this Court assumed the unsupported factual allegations of the Motion as true solely for the purpose of determining legal

sufficiency and consequently, found the Husband/Respondent's Verified Motion to Disqualify Judge Ayers be legally insufficient.

Accordingly, it is ORDERED that Husband/Respondent's Motion to Vacate, for Rehearing and in the Alternative Formal Written Order in Place of 2-6-25 Order Denying Motion to Disqualify Judge Ayers Without Identifying the Insufficiency or Grounds for Denial seeking a rehearing is hereby GRANTED IN PART AND DENIED IN PART.

The Court has provided a written explanation as to the Denial of the Husband/Respondent's Verified Motion to Disqualify Judge Ayers, to the extent provided by Florida law, otherwise, all other relief requested in Husband/Respondent's Motion to Vacate, for Rehearing and in the Alternative Formal Written Order in Place of 2-6-25 Order Denying Motion to Disqualify Judge Ayers Without Identifying the Insufficiency or Grounds for Denial is DENIED.

It is ORDERED in Tampa, Hillsborough County, Florida, on this _____ day of February, 2025.

24-DR-001150 2/17/2025 10:15:56 AM

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HONORABLE KELLY A. AYERS